



**Order under Section 69 / 89
Residential Tenancies Act, 2006**

Citation: PADAN v MORRISON, 2025 ONLTB 97002

Date: 2025-12-18

File Number: LTB-L-070717-25

In the matter of: 1701, 10 MARKBROOK LANE
ETOBICOKE ON M9V5E3

Between: SATNAM SINGH PADAN Landlord

And

ELIZABETH MORRISON Tenant

SATNAM SINGH PADAN (the 'Landlord') applied for an order to terminate the tenancy and evict ELIZABETH MORRISON (the 'Tenant') because:

- the Tenant, another occupant of the rental unit or someone the Tenant permitted in the residential complex has wilfully or negligently caused damage to the premises

SATNAM SINGH PADAN (the 'Landlord') also applied for an order requiring ELIZABETH MORRISON (the 'Tenant') to pay the Landlord's reasonable out-of-pocket costs the Landlord has incurred or will incur to repair or replace undue damage to property. The damage was caused wilfully or negligently by the Tenant, another occupant of the rental unit or someone the Tenant permitted in the residential complex.

This application was heard by videoconference on December 15, 2025.

The Landlord and the Tenant attended the hearing.

Determinations:

Preliminary Issue – N5 notice

1. The Landlord confirmed that on August 12, 2025 he served the Tenant with an N5 Notice to terminate the Tenancy pursuant to subsections 62(1) and 67(1) of the Residential Tenancies Act, 2006 (the 'Act'). The Termination date in the notice is also August 12, 2025.

File Number: LTB-L-070717-25

2025 ONLTB 97002 (CanLII)

2. Subsection 62(2) of the Act sets out the required elements for a valid N5 Notice: 62(2) A notice of termination under this section shall,
 - (a) provide a termination date not earlier than the 20th day after the notice is given;
 - (b) set out the grounds for termination; and
 - (c) require the tenant, within seven days,
 - (i) to repair the damaged property or pay to the landlord the reasonable costs of repairing the damaged property, or
 - (ii) to replace the damaged property or pay to the landlord the reasonable costs of replacing the damaged property, if it is not reasonable to repair the damaged property.
3. Pursuant to 67(1) a landlord may give a tenant notice of termination of the tenancy if the number of persons occupying the rental unit on a continuing basis results in a contravention of health, safety or housing standards required by law.
4. (2) A notice of termination under this section shall,
 - (a) provide a termination date not earlier than the 20th day after the notice is given;
 - (b) set out the details of the grounds for termination; and
 - (c) require the tenant, within seven days, to reduce the number of persons occupying the rental unit to comply with health, safety or housing standards required by law.
5. In the case before me, the termination date in the N5 notice is on the same day as the service of the notice on the Tenant. Because the Act requires that the termination date on a first N5 notice be at least 20 days after the notice is given, the Landlord's N5 is defective.
6. Having found the N5 to be invalid, the Landlord's application must be dismissed.

It is ordered that:

1. The Landlord's application is dismissed without prejudice.

December 18, 2025

Date Issued

Alicia Johnson
Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

Order Page 2 of 2